

JONES DAY

51 LOUISIANA AVE. NW • WASHINGTON, DC 20001
TELEPHONE: +1.202.879.3939 • FACSIMILE: +1.202.626.1700

DIRECT NUMBER: (202) 879-5485
NJFRANCISCO@JONESDAY.COM

November 26, 2024

David J. Smith
Clerk of Court
United States Court of Appeals for the Eleventh Circuit
56 Forsyth St., NW
Atlanta, GA 30303

Re: *American Securities Ass'n v. SEC* (No. 23-13396) –
Notice Under Fed. R. App. P. 28(j)

Dear Mr. Smith:

Petitioners write to inform the Court that Citadel Securities LLC has paid the first set of fees billed to cover the costs of the Securities and Exchange Commission's (SEC) unlawful Consolidated Audit Trail (CAT).

On September 13, 2024, petitioners moved for a stay of the SEC order at issue and for injunctive relief to preserve the longstanding status quo and to prevent the irreparable harm of paying tens of millions in unrecoverable fees while the Court considers their challenge. Petitioners requested relief by November 17, 2024—one week before the first payment deadline. The Court has yet to act.

On November 25, 2024, Citadel Securities paid \$3,222,287.13 to CAT LLC and \$460,192.64 to the Financial Industry Regulatory Authority (FINRA) to satisfy invoices issued in late October 2024 pursuant to the relevant SEC order.

Citadel Securities also has received invoices for the next month of CAT fees. Those invoices purport to require Citadel Securities to pay \$5,361,908.66 to CAT LLC by December 25, 2024, and FINRA's impending invoices for the same period are expected to demand hundreds of thousands of dollars more. Accordingly, Citadel Securities will continue to suffer significant, ongoing irreparable harm unless this Court grants the requested stay and injunctive relief pending its determination of the merits. Stay Mot. 10-12. Petitioners therefore reiterate their request for this equitable relief.

David J. Smith
November 26, 2024
Page 2

Respectfully submitted,

/s/ Noel J. Francisco

Noel J. Francisco
Counsel for Petitioner Citadel Securities LLC

/s/ J. Michael Connolly

J. Michael Connolly
Counsel for Petitioner American Securities
Association

cc: Counsel of Record via CM/ECF

David J. Smith
November 26, 2024
Page 3

CERTIFICATION

I hereby certify that pursuant to Fed. R. App. P. 28(j), the body of this Letter beginning with the first word after the salutation and ending with the last word before the complimentary close, contains 220 words according to the word-processing software used to prepare this Letter. I also certify that on November 26, 2024, I served a copy of the foregoing on all counsel of record by CM/ECF.

Dated: November 26, 2024

/s/ Noel J. Francisco
Noel J. Francisco